

STATE OF NEW YORK

7321--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. WEPRIN -- read once and referred to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to requiring health insurers to provide coverage for speech therapy for stuttering

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subsection (i) of section 3216 of the insurance law is
2 amended by adding a new paragraph 41 to read as follows:

3 (41)(A) Every policy which provides medical, major medical, or similar
4 comprehensive-type coverage shall, upon the referral of a physician,
5 provide coverage for all costs for speech therapy for stuttering. Such
6 speech therapy shall include, but not be limited to, habilitative speech
7 therapy treatment and rehabilitative speech therapy treatment for stut-
8 tering, provided such treatment is performed by a health care profes-
9 sional licensed pursuant to title eight of the education law. No insur-
10 er shall impose upon any person receiving benefits pursuant to this
11 paragraph any durational benefit limitation or maximum for benefits,
12 services, or visits provided under this paragraph.

13 (B) Nothing in this paragraph shall be construed to prevent the
14 medical management or utilization review of the services or prevent a
15 policy from requiring that services be provided through a network of
16 participating providers.

17 (C) Coverage may be denied on the basis that such treatment is being
18 provided to the insured pursuant to an individualized family service
19 plan under section twenty-five hundred forty-five of the public health
20 law or an individualized education plan under article eighty-nine of the
21 education law. The provision of services pursuant to an individualized
22 family service plan under section twenty-five hundred forty-five of the
23 public health law or an individualized education plan under article
24 eighty-nine of the education law shall not affect coverage under the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD07423-03-5

1 policy for services provided on a supplemental basis outside of an
2 educational setting if such services are provided upon the referral of a
3 physician.

4 § 2. Subsection (k) of section 3221 of the insurance law is amended by
5 adding a new paragraph 24 to read as follows:

6 (24) (A) Every group or blanket policy delivered or issued for deliv-
7 ery in this state which provides medical, major medical, or similar
8 comprehensive-type coverage shall, upon the referral of a physician,
9 provide coverage for all costs for speech therapy for stuttering. Such
10 speech therapy shall include, but not be limited to, habilitative speech
11 therapy treatment and rehabilitative speech therapy treatment for stut-
12 tering, provided such treatment is performed by a health care profes-
13 sional licensed pursuant to title eight of the education law. No insur-
14 er shall impose upon any person receiving benefits pursuant to this
15 paragraph any durational benefit limitation or maximum for benefits,
16 services, or visits provided under this paragraph.

17 (B) Nothing in this paragraph shall be construed to prevent the
18 medical management or utilization review of the services or prevent a
19 policy from requiring that services be provided through a network of
20 participating providers.

21 (C) Coverage may be denied on the basis that such treatment is being
22 provided to the insured pursuant to an individualized family service
23 plan under section twenty-five hundred forty-five of the public health
24 law or an individualized education plan under article eighty-nine of the
25 education law. The provision of services pursuant to an individualized
26 family service plan under section twenty-five hundred forty-five of the
27 public health law or an individualized education plan under article
28 eighty-nine of the education law shall not affect coverage under the
29 policy for services provided on a supplemental basis outside of an
30 educational setting if such services are provided upon the referral of a
31 physician.

32 § 3. Section 4303 of the insurance law is amended by adding a new
33 subsection (ww) to read as follows:

34 (ww) (A) Every medical expense indemnity corporation, hospital service
35 corporation and health service corporation which provides medical, major
36 medical, or similar comprehensive-type coverage shall, upon referral of
37 a physician, provide coverage for all costs for speech therapy for stut-
38 tering. Such speech therapy shall include, but not be limited to, habi-
39 litative speech therapy treatment and rehabilitative speech therapy
40 treatment for stuttering, provided such treatment is performed by a
41 health care professional licensed pursuant to title eight of the educa-
42 tion law. No corporation shall impose upon any person receiving bene-
43 fits pursuant to this subsection any durational benefit limitation or
44 maximum for benefits, services, or visits provided under this
45 subsection.

46 (B) Nothing in this subsection shall be construed to prevent the
47 medical management or utilization review of the services or prevent a
48 policy from requiring that services be provided through a network of
49 participating providers.

50 (C) Coverage may be denied on the basis that such treatment is being
51 provided to the insured pursuant to an individualized family service
52 plan under section twenty-five hundred forty-five of the public health
53 law or an individualized education plan under article eighty-nine of the
54 education law. The provision of services pursuant to an individualized
55 family service plan under section twenty-five hundred forty-five of the
56 public health law or an individualized education plan under article

eighty-nine of the education law shall not affect coverage under the policy for services provided on a supplemental basis outside of an educational setting if such services are provided upon the referral of a physician.

§ 4. This act shall take effect on the first of January next succeeding the date on which it shall have become a law and shall apply to policies and contracts issued, renewed, modified, altered or amended on or after such effective date. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.